

LEGAL SCRUTINY REPORT/ OPINION

Dated: 22.03.2025

Status:- Positive

Lead No. HLSA000D46E6

Type of Case –Purchase

To

**Piramal Capital & Housing Finance Limited,
Third Floor, Jaipur Tower,
Maan Upasana Tower,
Jaipur**

Dear Sir/Madam,

Sub: Legal Scrutiny Report in respect of the loan application of **Mohammed Arif (Applicant), Mrs. Shasta (Co-Applicant)**

As desired by you vide the above referred letter, I/we are furnishing hereunder the legal scrutiny report in respect of the property.

PART I:

- 1) Name of the Borrower:** Mohammed Arif (Applicant), Mrs. Shasta (Co-Applicant)
- 2) Description/ Address of the Property:** West Part of Plot no. A-14, Measuring 61.00 Sq. Yd., situated Scheme Shanti Colony, Ghat Ki Guni, Dist. Jaipur, Rajasthan.

Boundaries of the Property: -

East: East Part of Plot No. A-14
North: Plot No. 15-A

West: Plot No. 13-A
South: Road 30 Feet

- 3) Name of Current Owner (s):** Mohammed Rais S/o. Abdul Rasheed
- 4) Nature/Status of Property:-** Freehold
- 5) Permitted land usage as per the documents:** -Residential
- 6) Purpose of loan and Type of Transaction:-** Purchase

PART II

**List of Documents submitted before me/us for Scrutiny and Legal Opinion:
(Specify the documents are Original or Xerox):**

1. **Photocopy of** Allotment Letter dated 07/09/1983 issued by the Office Nagar Parishad Jaipur in favour of Mrs. Saidan W/o. Late Abdullaha, in respect of Plot No. A-14 area 110.00 Sq. Yd.
2. **Photocopy of** Possession Letter dated 16/11/1983 issued by the Office Nagar Parishad Jaipur in favour of Mrs. Saidan W/o. Late Abdullaha, in respect of Plot No. A-14 area 110.00 Sq. Yd.
3. **Photocopy of** Construction Letter No. 2112 issued by the Office Nagar Parishad Jaipur in favour of Mrs. Saidan W/o. Late Abdullaha, in respect of Plot No. A-14 area 110.00 Sq. Yd.
4. **Photocopy of** Registered Sale deed dated 30.12.2013 executed by Mr. Noor Mohammed S/o. Abdullaha in favour of Mohammed Rais S/o. Abdul Rasheed, in respect of West Part of Plot no. A-14, Measuring 61.00 Sq. Yd., along with site plan, The Said deed is registered before the Sub-registrar Jaipur-VI, Serial No.2013396006578, Book No. 1, Volume No.160, Page No. 119 on Dated 30.12.2013.
5. **Photocopy of** Draft Agreement to Sale executed by Mohammed Rais S/o. Abdul Rasheed in favour of Mohammed Arif S/o. Abdul Hameed, in respect of West Part of Plot no. A-14, Measuring 61.00 Sq. Yd.

PART III

FLOW OF TITLE OF PROPERTY-(HISTORY OF TITLE):

As per the document Plot no. A-14, Measuring 61.00 Sq. Yd., situated Scheme Shanti Colony, Ghat Ki Guni, Dist. Jaipur, Rajasthan. was allotted by the Office Nagar Parishad Jaipur in favour of Mrs. Saidan W/o. Late Abdullaha Allotment Letter dated 07/09/1983.

Then after Mrs. Saidan W/o. Late Abdullaha passed away and after her death Mr. Abdullaha, Mr. Noor Mohammed and Mr. Gulzar became the owners of the Plot No. 04 area 110 Sq. Yd. (Mr. Abdullaha also passed away Intestate)

Then after Mr. Noor Mohammed S/o. Abdullaha Sold the West Part of Plot no. A-14, Measuring 61.00 Sq. Yd. to Mohammed Rais S/o. Abdul Rasheed through Registered Sale deed dated 30.12.2013, The Said deed is registered before the Sub-registrar Jaipur-VI, Serial No.2013396006578, Book No. 1, Volume No.160, Page No. 119 on Dated 30.12.2013.

Now a Draft Agreement to Sale executed by Mohammed Rais S/o. Abdul Rasheed in favour of Mohammed Arif S/o. Abdul Hameed, in respect of West Part of Plot no. A-14, Measuring 61.00 Sq. Yd.

PART IV

EVIDENCE OF TITLE OF PROPERTY:

As per the document Plot no. A-14, Measuring 61.00 Sq. Yd., situated Scheme Shanti Colony, Ghat Ki Guni, Dist. Jaipur, Rajasthan. was allotted by the Office Nagar Parishad Jaipur in favour of Mrs. Saidan W/o. Late Abdullaha Allotment Letter dated 07/09/1983.

Then after Mrs. Saidan W/o. Late Abdullaha passed away and after her death Mr. Abdullaha, Mr. Noor Mohammed and Mr. Gulzar became the owners of the Plot No. 04 area 110 Sq. Yd. (Mr. Abdullaha also passed away Intestate)

Then after Mr. Noor Mohammed S/o. Abdullaha Sold the West Part of Plot no. A-14, Measuring 61.00 Sq. Yd. to Mohammed Rais S/o. Abdul Rasheed through Registered Sale deed dated 30.12.2013, The Said deed is registered before the Sub-registrar Jaipur-VI, Serial No.2013396006578, Book No. 1, Volume No.160, Page No. 119 on Dated 30.12.2013.

Now a Draft Agreement to Sale executed by Mohammed Rais S/o. Abdul Rasheed in favour of Mohammed Arif S/o. Abdul Hameed, in respect of West Part of Plot no. A-14, Measuring 61.00 Sq. Yd.

PART V
OTHER PROVISIONS:

- | | |
|--|-----|
| 5.1 Whether provisions of Urban Land Ceiling Act are applicable? | NO |
| 5.2 Whether property to be given as security is subject to any minor's claim/share? | NO |
| 5.3 Whether the property is affected by any revenue and tenancy regulations? | NO |
| 5.4 Whether the user land has been converted into Non-Agricultural for Residential use by the Order of the competent Authority? | YES |
| 5.5 Whether up to date tax/Land Revenue has been paid on the property. | N/A |
| 5.6 Whether all original documents for last 13/30 years (as per the company policy) have been scrutinized? | NO |
| 5.7 Whether required documents are available for creating mortgage? | YES |
| 5.8 Whether all previous owners had the right/competency to transfer the property? | YES |
| 5.9 Whether proposed mortgage by deposit of title deeds is possible? | YES |
| 5.10 Whether the property has been transferred /to be transferred by a POA holder of the original land owner in favor of the loan Applicant? | N/A |
| 5.11 Whether POA holder of original land owner has/had authority under POA. | N/A |
| 5.12 Whether the said POA as recorded in 5.11 is registered? | N/A |
| 5.13 What is the tenure of the land leased? | NA |
| 5.14 Whether the land is Adivasi (Tribal) Land? | NO |
| 5.15 Whether the land/property is joint family property? | NO |
| 5.16 Is the land/property/House is subject to any reservations/acquisitions/requisitions? | N/A |
| 5.17 Whether Search Report is obtained and submitted? | |
| (i) Search Report Details RJ1749800810387 | |
| (ii) Search Conducted Years:- 2013-2025 {13 Years} | |
| (iii) Name of the Advocate:- Mr. Girraj Sharma | |
| (iv) Search Report Date:- 22.03.2025 | |
| 5.18 Whether EC is obtained? | |

As there is no integrated system in Rajasthan through which charge on a property can searched in Sub registrar office, therefore there is no process of issuance of Non Encumbrance certificate from Sub registrar in Rajasthan.

- (i) EC Details
- (ii) No. of Years EC Obtained
- (iii) Any Encumbrance To Specify
- (iv) EC Applied by

5.19 Whether Builder is a Private/Limited Company? NO

- (i) ROC Search Report Submitted/Carried Out? NA
- (ii) Any Charge/Mortgage is created on the Project/Property/House/Apartment? NO
- (iii) If Mortgage/Charged, Name of the Bank/FI N/A
- (iv) Whether NOC/Release Letter Obtained or Not? N/A

PART VI

CERTIFICATE:

In view of the foregoing, I/We certify that the title deeds intended to be deposited, relating to the property and offered as security by way of equitable mortgage and the documents of title referred to above are perfect evidence of the title and that if the said equitable mortgage is created in the manner required by law, it would satisfy the requirements of creation of equitable mortgage.

I/We further certify that **Mohammed Arif S/o. Abdul Hameed** intending Borrower has/would derive valid, clear, marketable and unencumbered title in the property/is stated above and competent to create the mortgage in favour of the Piramal Capital & Housing Finance Ltd., free from all encumbrances

The mortgage if created will be available to PCHFL for the liability of the intending Borrower **Mohammed Arif S/o. Abdul Hameed**. We further certify that the subject property is enforceable under SARFAESI Act 2002 by the Lender.

It may be noted that we are neither handwriting expert nor expert at detecting fraudulent documents. Hence, we shall not be responsible in this regard. The inspection of index records as being made available at the office of concerned sub-registrar, are normally incomplete, scattered in nature & manually managed, due to which it is impossible to find out other registered entries (if any) related to the said property.

Steps/Documents required for creation of equitable mortgage:

I. Documents to be collected by Piramal Capital & Housing Finance Limited for creation of mortgage of the said property prior to the Disbursement:

Critical documents – documents which are “must to have” for creation of equitable mortgage

1. **Photocopy of** Allotment Letter dated 07/09/1983 issued by the Office Nagar Parishad Jaipur in favour of Mrs. Saidan W/o. Late Abdullaha, in respect of Plot No. A-14 area 110.00 Sq. Yd.
2. **Photocopy of** Possession Letter dated 16/11/1983 issued by the Office Nagar Parishad Jaipur in favour of Mrs. Saidan W/o. Late Abdullaha, in respect of Plot No. A-14 area 110.00 Sq. Yd.
3. **Photocopy of** Construction Letter No. 2112 issued by the Office Nagar Parishad Jaipur in favour of Mrs. Saidan W/o. Late Abdullaha, in respect of Plot No. A-14 area 110.00 Sq. Yd.
4. **Photocopy of** Death Certificate of Late Mrs. Saidan **(To Be Obtained)**
5. **Photocopy of** Death Certificate of Late Mr. Abdullaha **(To Be Obtained)**
6. **Photocopy of** News Paper publication for legal heirs **(To Be Obtained)**
7. **Original** NOC by the Panel Lawyer for legal heirs **(To Be Obtained)**
8. **Photocopy of** Registered Partition deed between Mr. Noor Mohammed and Mr. Gulzar, in respect of Plot No. 04 area 110.00 Sq. Yd. **(To Be Obtained)**
9. **Photocopy of** Registered Sale deed dated 30.12.2013 executed by Mr. Noor Mohammed S/o. Abdullaha in favour of Mohammed Rais S/o. Abdul Rasheed, in respect of West Part of Plot no. A-14, Measuring 61.00 Sq. Yd., along with site plan, The Said deed is registered before the Sub-registrar Jaipur-VI, Serial No.2013396006578, Book No. 1, Volume No.160, Page No. 119 on Dated 30.12.2013.
10. **Original** Stamp undertaking from borrower to hand over the registered lease deed as & when issued by the JDA, deposit the same with Piramal Capital & Housing Finance Limited & No Court Case/Dispute/Litigation pending against property. **(To Be Obtained)**
11. **Original** Agreement to Sale executed by Mohammed Rais S/o. Abdul Rasheed in favour of Mohammed Arif S/o. Abdul Hameed, in respect of West Part of Plot no. A-14, Measuring 61.00 Sq. Yd.

Non Critical documents which are “good to have” and not necessary for creation of equitable mortgage

- II. Documents to be collected by Piramal Capital & Housing Finance Limited at the time of Delivery of Pay Order(s)/Demand Draft(s) to the Seller(s)/ Borrower(s):**
Critical documents – documents which are “must to have” for creation of equitable mortgage:

NA

Noncritical documents which are “good to have” and not necessary for creation of equitable mortgage:

The above documents are required before disbursement of the loan for creating

valid mortgage.

III. Documents to be collected by Piramal Capital & Housing Finance Limited for creation of Equitable mortgage of the said property Post Disbursement:

1. **Original** Registered Sale deed dated 30.12.2013 executed by Mr. Noor Mohammed S/o. Abdullaha in favour of Mohammed Rais S/o. Abdul Rasheed, in respect of West Part of Plot no. A-14, Measuring 61.00 Sq. Yd., along with site plan, The Said deed is registered before the Sub-registrar Jaipur-VI, Serial No.2013396006578, Book No. 1, Volume No.160, Page No. 119 on Dated 30.12.2013.
2. **Original** Proposed registered sale deed executed by Mohammed Rais S/o. Abdul Rasheed in favour of Mohammed Arif S/o. Abdul Hameed, in respect of West Part of Plot no. A-14, Measuring 61.00 Sq. Yd., along with site plan. **(To Be Obtained)**

Remarks if any: -This opinion based on documents and Please revert in case of any further clarification.

Thanking you,
Yours truly,

Girraj Sharma
Advocate
For G.S. And Associates